



Bureau of Experts at the Council of Ministers
Official Translation Department

Law of Commercial Data

Royal Decree No. M/15
June 25, 2002

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

otd@boe.gov.sa



Law of Commercial Data

Article 1

In the implementation of the provisions of this Law, any clarification directly or indirectly related to any of the following shall be deemed commercial data:

- a) The number, quantity, size, volume, capacity, weight, production date, or expiration date of goods.
- b) The area or country where goods were manufactured or produced.
- c) The components of goods.
- d) The name of the producer or manufacturer, or his attributes.
- e) Patents or other industrial proprietary rights, or any concessions, awards, or commercial or industrial features.
- f) The nomenclature or form by which some goods are typically defined or evaluated.

Article 2

Commercial data shall be written at least in Arabic and shall be accurate, whether placed on the products; at places of business or warehouses, or with their addresses; on packaging, invoices, or letterheads; in advertisements; or on any other medium used to display goods to the public.

Article 3

Medals, diplomas, rewards, or honorary degrees of any kind may be indicated only with products to which such distinctive features apply, and with the persons and trade names granted such features or to which the rights arising therefrom have been transferred, provided that such indication includes accurate data regarding the feature's date, type, and granting authority. A party which displays products jointly with others may not use for its own products the distinctive features granted to the jointly displayed products, unless the source and type of such distinctive features are clearly indicated.

Article 4

The name or address of a seller may not be placed on products imported from a country other than the country in which they are sold, unless accompanied by accurate and clearly written data on the country or area of manufacture or production. Persons who reside in an area known for manufacturing or producing certain products and who trade in similar products imported from another area may not place their trademarks on such products if such trademarks may mislead the public as to the origin thereof, even if such trademarks do not bear the names or addresses of said persons, unless proper measures are taken to avoid confusion.

Article 5

A manufacturer who has a main factory in a certain area may not use the name of such area on products manufactured for his account in another area, unless such name is accompanied with the name of the other area in a manner that precludes any confusion.



Article 6

If the value of a product is determined by its quantity, size, volume, capacity, weight, origin, or components, the Minister of Commerce may issue a decision to prohibit the import, sale, or offering for sale of such product, unless such data is indicated thereon. The Minister of Commerce shall issue a decision specifying the method of placing such data on the product and the alternative measures to be taken if such method is infeasible.

Article 7

Without prejudice to any harsher penalty, any person who violates the provisions of this Law shall be subject to a fine not exceeding one hundred thousand riyals (SAR 100,000). If the violation is repeated, the penalty shall be doubled and the place of business shall be closed for a period not exceeding one year.

Article 8

Competent employees at the Ministry of Commerce shall be responsible for detecting and recording violations of the provisions of this Law.

Article 9

The Bureau of Investigation and Public Prosecution shall have the jurisdiction to investigate violations of the provisions of this Law and to prosecute such violations before the competent judicial authority.

Article 10

The Board of Grievances shall have the jurisdiction to decide on violations and disputes arising from the implementation of the provisions of this Law.

Article 11

The Board of Grievances may order the confiscation of seized items; the sale of such items, if sellable; the deduction of their value from any compensations and fines that may be imposed; and the destruction of any remaining items or the disposition thereof in any manner it deems appropriate. The Board may also order the publication of the decision of conviction, confiscation, or destruction in a daily newspaper published in the convicted person's area of residence, at his expense.

Article 12

Without prejudice to the right of concerned persons to seek compensation for damages arising from the use of inaccurate data, such persons may at any time, even prior to filing a lawsuit, resort to the Board of Grievances to take any necessary provisional measures.

Article 13

The Minister of Commerce shall issue the Implementing Regulations, as well as the decisions necessary for the implementation of the provisions of this Law, within 180 days from the date of its issuance.



Article 14

This Law shall be published in the Official Gazette and shall enter into force on the date of its publication.



Appendix

Amendments

March 7, 2006 (Safar 7, 1427H)

Royal Decree No. M/11 provides for the following:

- Amending paragraph (a) of Article 1 to read as follows:

"a) The number, quantity, size, volume, capacity, weight, price, production date, or expiration date of goods".

July 11, 2018 (Shawwal 27, 1439H)

Royal Decree No. M/108 provides for the following:

- Amending Article 11 to read as follows:

"The competent court may order the confiscation of seized items; the sale of such items, if sellable; the deduction of their value from any compensations and fines that may be imposed; and the destruction of any remaining items or the disposition thereof in any manner it deems appropriate.

The competent court may, in its conviction decision, provide for the publication of a summary thereof at the violator's expense in a local newspaper or through any other appropriate medium, as per the type, gravity, and impact of the violation, provided that publication is made only after the decision becomes final".